**THE NATIONAL COMPANY LAW TRIBUNAL**
**CHANDIGARH BENCH, CHANDIGARH**

**Item 6**

**CP (CAA) No. 20/Chd/Hry/2023**
**(2nd Motion)**

**Under Sections 230-232 of the Companies Act, 2013**

**In the matter of Scheme of Amalgamation:**

**AMON Estates Private Limited**
with its registered office at
1st Floor, DLF Gateway Tower,
R Block, DLF City, Phase III, Gurugram-122002
PAN: AAGCA3665C
CIN: U70109HR2007PTC100728

…Petitioner Company No.1/Transferor Company No. 1

And

**Calista Resl Estates Private Limited**
with its registered office at
1st Floor, DLF Gateway Tower,
R Block, DLF City, Phase III, Gurugram-122002
PAN: AACCC8308C
CIN: U45201HR2006PTC100731

…Petitioner Company No.2/Transferor Company No. 2

And

**Chevalier Builders & Constructions Private Limited**
with its registered office at
1st Floor, DLF Gateway Tower,
R Block, DLF City, Phase III, Gurugram-122002
PAN: AACCC8737D
CIN: U45201HR2006PTC100538

…Petitioner Company No.3/Transferor Company No. 3

And

**Erasma Builders & Developers Private Limited**
with its registered office at

1st Floor, DLF Gateway Tower,
R Block, DLF City, Phase III, Gurugram-122002
PAN: AABCE7873P
CIN: U45201HR2006PTC100534

…Petitioner Company No.4/Transferor Company No. 4

And

**Hestia Realtors Private Limited**
with its registered office at
1st Floor, DLF Gateway Tower,
R Block, DLF City, Phase III, Gurugram-122002
PAN: AABCH8736J
CIN: U70102HR2007PTC100730

…Petitioner Company No.5/Transferor Company No. 5

And

**Laraine Builders & Constructions Private Limited**
with its registered office at
1st Floor, DLF Gateway Tower,
R Block, DLF City, Phase III, Gurugram-122002
PAN: AABCL2676D
CIN: U45201HR2006PTC100535

…Petitioner Company No.6/Transferor Company No. 6

And

**Snigdha Builders & Constructions Private Limited**
with its registered office at
1st Floor, DLF Gateway Tower,
R Block, DLF City, Phase III, Gurugram-122002
PAN: AAJCS9518F
CIN: U45201HR2006PTC100536

…Petitioner Company No.7/Transferor Company No. 7

With

**DLF Southern Towns Private Limited**
with its registered office at
1st Floor, DLF Gateway Tower,
R Block, DLF City, Phase III, Gurugram-122002
PAN: AADCP9107F
CIN: U45201HR2006PTC102641

…Petitioner Company No.8/Transferee Company

**Present :**

Mr. Abhinav Sood with Ms. Anmol Gupta, Advocates for the petitioner companies.

This is a second motion company petition filed by the Petitioner-Companies, **AMON Estates Private Limited** ( Petitioner Company No.1/Transferor Company No. 1); **Calista Resl Estates Private Limited** (fPetitioner Company No.2/Transferor Company No. 2); **Chevalier Builders & Constructions Private Limited** (Petitioner Company No.3/Transferor Company No. 3); **Erasma Builders & Developers Private Limited** (Petitioner Company No.4/Transferor Company No. 4); **Hestia Realtors Private Limited** (Petitioner Company No.5/Transferor Company No. 5); **Laraine Builders & Constructions Private Limited** (Petitioner Company No.6/Transferor Company No. 6); **Snigdha Builders & Constructions Private Limited** (Petitioner Company No.7/Transferor Company No. 7) with **DLF Southern Towns Private Limited** (Petitioner Company No.8/Transferee Company) in relation to the Scheme of Amalgamation between the petitioner companies in terms of Section 230-232 of the Companies Act, 2013

2. In its petition, the petitioner companies has prayed inter alia to issue directions in relation to publication in press and notices to be issued to the authorities concerned in relation to date of hearing of the petition and calling for objections.

3. The first motion application seeking directions for Convening/dispensing with the meetings of the Equity Shareholders, Secured and Unsecured Creditors of all the Applicant Companies and of Preference Shareholders and Debenture holders of Transferee Company were filed before this Tribunal vide Company Application No. CA (CAA) No. 31/Chd/Hry/2022 and based on such application, necessary directions were issued on 02.03.2023. In the order dated 02.03.2023, the meetings of the Equity Shareholders, Secured creditors of all the Applicant Companies and of Unsecured Creditors of Applicant Company No. 1 to 7 and of Preference Shareholders and Debenture holders of Transferee Company were dispensed with for the reasons mentioned in the aforesaid order. It is further directed to convene the meeting of Unsecured Creditors of Applicant Company No. 8/Transferee Company on 22.04.2023.

4. In compliance of the directions issued by this Tribunal, the Chairperson, Alternate Chairperson and Scrutinizer were also appointed and they have filed their reports which are as under:

| Sr. No. | Meeting of | Chairpersons /Alternate Chairperson/Scrutinizer | Chairperson's Report | | Date of meeting |
|---|---|---|---|---|---|
| | | | Date of filing | Date of Report | |
| 1. | Un-Secured Creditors of Applicant Company No. 8/Transferee Company | Mr. Dhritiman Bhattacharyya, Advocate, Chairperson<br><br>Mrs. Shruti, Advocate, Alternate Chairperson<br><br>Mrs. Bharti Kashyap, Practicing Company Secretary, Scrutinizer | Diary No. 04041160119720 22 dated 26.04.2023 | 26.04.2023 | 24.04.2023 |

As per Chairperson's Reports, The resolution approving the scheme has been unanimously approved and passed in case of the Unsecured Creditors of Applicant Company No. 8/Transferee Company .

5. The notice of hearing will be advertised in "Financial Express" (English, Delhi NCR Edition) and "Jansatta" (Hindi, Delhi NCR Edition) not less than 10 days before the next date fixed for hearing.

6. The main objects, date of incorporation, authorized and paid-up share capital and the rationale of the Scheme have been discussed in detail in the order dated 22.04.2023.

7. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition on the following Authorities namely, a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) Concerned Registrar of Companies, (c) Official Liquidator (OL); (d) Real Estate Regulatory Authority (RERA); (e) Jurisdictional Income Tax Authorities through the Nodal Officer-Principal Commissioner of Income Tax, NWR, Aayakar Bhawan, Sector 17-E, Chandigarh by mentioning the PAN of the company along with a copy of this petition by speed post immediately.

8. The petitioner-companies shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter,

subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

9. The next date of hearing of the petition shall be on 10.08.2023 for the consideration of the approval of the scheme as contemplated between the petitioner companies.

10. It is stated that the compliance affidavit has been filed by Diary No. 01197/2 dated 11.04.2023 and Chairperson Report filed by Diary No. 01197/3 dated 20.04.2023, but the same are not placed before us. The Registry is directed to trace the same and place it before us on the next date of hearing. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

May 19, 2023
SA/PKA